

20STCV47187 20STCV47187

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C07%2F09%2F2026

Source SHA-256: 8e6d936a44708d5479748c526d64016e3c6045b5aeedfa9846e0872ed844c4b3

Case Number: 20STCV47187 Hearing Date: July 9, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

DAVID MAZOR,

Plaintiff,

vs.

WILLIAM LEYS, et al.,

Defendants.

Case

No.:

20STCV47187

Hearing Date:

July 9, 2026

Hearing Time: 2:00

p.m.

[TENTATIVE] ORDER RE:

PLAINTIFF DAVID

MAZOR'S EX PARTE APPLICATION FOR ORDER MODIFYING OR REVOKING THE
PROBATION OF CONTEMNOR, WILLIAM M. LEYS

Background

On December 9, 2020, Plaintiff David Mazor ("Plaintiff") commenced this action against Defendants William Leys ("Leys") and Jose Ortiz (jointly, "Defendants") for stalking.

On

August 24, 2021, Judgment was entered in this matter against Defendants, jointly and severally, in the total amount of \$1,000,855.00, plus post-judgment interest.[1]

The August 24, 2021 Judgment also includes specified injunctive orders.

On July 7, 2025, the

Court entered a judgment of contempt against Leys for attorney fees and costs in the amount of \$444,957.49, pursuant to the stipulation of the parties, incurred in connection with the contempt proceeding. In the Contempt Judgment, the Court ordered "1 year of Summary Misdemeanor probation" for Leys, and if Leys complied with various conditions, his "115 days of County Jail" would be suspended. (Contempt Jdg., Ex. B, 1:6-8.) The various conditions the Court imposed include: "William Leys removes all Prohibited stalking matter, as defined in the June 6, 2025 statement of decision and order by the Court after contempt trial against William M. Leys (the 'Decision') which was the basis for this contempt action, from all platforms across the Internet and the World Wide Web; removal to be completed within 7 days of sentencing. (i.e. 7 days from 7/7/2025).

William Leys refrains from posting or reposting any new or pre-existing Prohibited Stalking Matter which was the basis for this contempt action from the Internet or the World Wide Web for 1 year from the date of this Order. Perform 100 hours of community service at a 501(c)(3) non-profit organization. Proof of enrollment to be filed and served within 30 days of the date of this Order. Proof of completion to be filed and served in this case within the one-year probationary period. Obey all laws and orders of the Court. Upon completion of the removal of Prohibited Stalking Matter, the proof of completion of community service, and 1 year without any posting or reposting of Prohibited Stalking Matter, the 100 days of county jail will be permanently stayed. On or before 4

p.m. on 7/8/2025, Pl[aintiff] will email to counsel for William Leys a list of all known Prohibited Stalking Matter. On or before 7/15/2025, William Leys must file proof by declaration filed with the Court and served on Plaintiff that he has complied with this Order to remove all of the Prohibited Stalking Matter.” (Id., Ex. B, 1:9-28.) The Court further noted that if “Leys violates the sentence imposed, Pl[aintiff] will give email notice to his counsel Mr. Teola, and he will have 24 hours to respond thereto. If the violation occurred, Pl[aintiff] may [] proceed with ex parte application to revoke probation and have the 115 days of jail time imposed.” (Id., Ex. B, p. 2.)

Plaintiff brings an ex parte application seeking “an order modifying or revoking the probation of CONTEMNOR LEYS to provide that (1) CONTEMNOR LEYS shall serve in the Los Angeles County Jail One Hundred (100) consecutive days of the One Hundred Fifteen (115) -day sentence imposed by the Contempt Judgment (‘Sentence’); (2) the remaining Fifteen (15) days of the Sentence shall remain suspended on the same terms and conditions imposed in the Contempt Judgment, as may be modified by the Court; (3) CONTEMNOR LEYS shall be immediately remanded into the custody of the Los Angeles County Sheriff to serve the One Hundred (100)-day custodial portion of the Sentence in the Los Angeles County Jail; (4) CONTEMNOR LEYS shall obtain counseling to help reform and rehabilitate him; and (5) all other terms and conditions of the Contempt Judgment shall remain in full force and effect.” (App., 2:3-14.)

On May 1, 2026, the Court called Plaintiff’s ex parte application for hearing but continued the hearing on its merits to allow Daniel Joseph Teola from the Public Defender’s Office to represent Leys again.

At the May 13, 2026 hearing, the Court continued the hearing on Plaintiff’s ex parte application to July 9, 2026, and “summarily and preliminarily revoke[d] the probation of Leys” because the “expiration of the probation period for contemnor Leys is July 7, 2026.” (Minute Order 5/13/26, p. 1, ¶ 1.) The Court also ordered Leys to “file and serve a written response regarding the legal issues of whether the alleged conduct can constitute a violation of contempt judgment and serve as a basis for revoking probation on or before June 12, 2026,” and ordered Plaintiff to “file and serve his reply on or before July 1, 2026.” (Minute

Order 5/13/26, p. 1, ¶ 2.)

Moreover, the Court ordered the parties

“to meet and confer regarding potential stipulated facts and evidence for any probation revocation evidentiary hearing that would occur if the Court finds in favor of Plaintiff on his application.” (Minute Order 5/13/26, p. 1, ¶ 3.) The Court also found that if it does “find[] in favor of Leys, his probation will be terminated at that time.” (Minute Order 5/13/26, p. 2, ¶ 4.)

On June 12, 2026, Leys filed his opposition. Plaintiff replied.

Request for Judicial Notice

The Court grants Plaintiff’s request for judicial notice of Exhibits A, B, C, D, and E.

Discussion

Plaintiff now seeks to impose the condition sentencing Leys to 115 days in County Jail, as outlined in the Contempt Judgment, and for Court-ordered counseling because “Leys failed, and continues to fail, to comply with the absolute terms and conditions of his probation.” (Memo., 2:16-17.)

A.

The Court Imposes Time in County Jail for Probation Violations

Plaintiff outlines various violations Leys engaged in, asserting that Leys violated the terms of the Contempt Judgment, which stated that Leys must “Obey all laws and orders of the Court.” (Contempt Jdg., Ex. B, 1:17.)

First, included in Plaintiff’s alleged violations is that Leys “impermissibly directly contacted a Protected Person under the Judgment.” (Memo., 4:12.) The Court’s August 24, 2021 Judgment states that “Defendants, William Leys and Jose Ortiz ... are permanently restrained and enjoined ... [and] are hereby prohibited from contacting the Protected Persons either directly or indirectly, in any way, including, but not limited to, in person, by telephone, in writing by public or private mail by interoffice mail, by e-mail, by text message, by fax, by social media of any kind or nature, or by any other electronic means.” (RJN, Ex. B, Judgment, 2:8-10, 3:8-12.) Protected Persons include Mazor, Mazor’s immediate

family, WICR Waterproofing and Construction, Inc., and Lindborg & Mazor LLP. (Id., 2:16-25.) As evidence, Plaintiff's counsel attaches an email Leys sent to Plaintiff's counsel of Lindborg & Mazor LLP and Irina Mazor, Plaintiff's wife, on April 9, 2026. (Lindborg Decl., ¶¶ 4, 7; Ex. 1.)

Additionally, Plaintiff alleges that Leys violated the Court's orders regarding the Order for Appearance and Examination ("ORAP"), entered on September 18, 2025 on "at least eight (8) separate" occasions. (Memo. 7:1 [emphasis omitted].) The Court's ORAP required Leys to appear before the Court and included an extensive list of documents Leys was "required to bring with him to the Examination." (RJN, Ex. C, ORAP; p. 1, ¶ 2; Attach. A, p. 1.)

At the original ORAP hearing set for December 9, 2025, Plaintiff asserts Leys "failed to personally appear." (Memo., 4:24-25.) From the hearing on December 9, 2025, the Court's minute order notes that "William Leys erroneously appeared remotely for the examination. Plaintiff did not agree to do the examination remotely." (RJN, Ex. D, Minute Order 12/9/25, p. 1.)

Plaintiff next asserts that due to Leys failure to comply, "[t]he Court also informed Contemnor Leys that he waived all rights, if any, to object to the ORAP Mandated Documents as well as to the questions posed to him in connection with the ORAP," but "Leys failed to produce all ORAP Mandated Documents and to respond to all ORAP-related questions without objection at the hearing of December 19, 2025." (Memo., 5:3-7.) The Court's minute order from December 19, 2025 states that "[t]he Court orders Defendant Leys to return to Department 50 on January 26, 2026 at 10:00a.m. for the continued debtor's examination. Defendant Leys is also ordered to produce on or before January 14, 2026 the documents in his possession, custody or control as a sole member of William Leys Waterproofing Consultants LLC identified but not produced at the examination today as set forth in the reporter's transcript." (RJN, Ex. D, Minute Order 12/19/25, p. 1.)

At the next hearing on January 26, 2026, Plaintiff asserts "Leys failed to personally appear, produce all ORAP Mandated Documents, and respond to all ORAP-related questions without objection." (Memo., 5:13-14.) The Court's minute order notes that "[d]ue to illness of Defendant the matter is continued." (RJN, Ex. D, Minute Order 1/26/26, p. 1.)

For the following hearing on February 5, 2026, Plaintiff alleges that "Leys failed to produce all ORAP Mandated Documents and respond to all ORAP-related

questions without objection.” (Memo., 5:20-21.) The minute order from the hearing states that “Mr. Leys is ordered to respond truthfully regarding his Social Security Number, Driver's License Number, EIN Number and any financial documents in his custody or control. ... The Court orders Mr. Leys to have the requested documents on the continued hearing date on February 19, 2026.” (RJN, Ex. D, Minute Order 2/19/26, p. 1.)

Plaintiff alleges that for the February 19, 2026 hearing, Leys did not appear, produce the documents, or respond without objection. (Memo., 5:26-6:2.) From the hearing on February 19, 2026, the Court stated that “[b]ecause Mr. Leys failed to appear at the examination today, the Court issues and holds a Bench Warrant. If Mr. Leys fails to appear on March 6, 2026 for the examination with the unredacted documents identified in the Court's order dated September 18, 2025, the Bench Warrant will issue for his appearance at a continued examination on April 7, 2026.” (RJN, Ex. D, Minute Order 2/19/26, p. 1.)

Further, at the March 6, 2026 hearing, Plaintiff contends that “Leys failed to produce all ORAP Mandated Documents and respond to all ORAP-related questions without objection.” (Memo., 6:7-8.) At the hearing, the Court noted that “Leys is refusing to produce unredacted documents covered by the Court's previous orders and he has shredded documents. The Court advised Mr. Leys that he may be facing contempt charges if he does not comply with the Court's orders and he has agreed to contact his attorney Mr. Teola from the Alternate Public Defender's Office.” (RJN, Ex. D, Minute Order 3/6/26, p. 1.) The Court further continued the ORAP to April 7, 2026, and ordered Leys “to appear in person to inform the Court as to whether he will comply with the Court's orders, specifically the order to produce the unredacted documents such as cash receipts, contracts with customers for the LLC that he controls and which are in his possession, custody or control. If Defendant Leys is going to comply, he must bring all the unredacted documents described above to the hearing. If Defendant Leys fails to obey the Court's orders, Plaintiff may brief the issue of whether Defendant Leys is in contempt of the Court's orders, citing support from the transcripts of the debtor proceedings thus far.” (Ibid.)

Lastly, Plaintiff contends that for the April 7, 2026 hearing, “Leys failed to produce all ORAP Mandated Documents in unredacted form and respond to all ORAP-related questions without objection.” (Memo., 6:21-24.) The April 7, 2026 minute order confirms that “Leys did not comply with the production of unredacted documents as outlined in the Minute Order dated March 6, 2026.” (RJN, Ex. D, Minute Order 4/7/26, p. 1.)

Based on the foregoing assertions by Plaintiff and evidence in the Court's docket, it appears that Leys' actions may constitute a violation of the Contempt Judgment. However, Leys' opposition contends his actions do not constitute a violation of the Contempt Judgment.

Leys asserts that the applicable precedent for violating probation terms is *People vs. Lent* (1975) 15 Cal.3d 481, 486 (Lent) (superseded by statute on different grounds), where the Supreme Court stated that "[a] condition of probation will not be held invalid unless it (1) has no relationship to the crime of which the offender was convicted, (2) relates to conduct which is not in itself criminal, and (3) requires or forbids conduct which is not reasonably related to future criminality." (Internal quotations omitted.) Additionally, Leys cites *People v. Carbajal* (1995) 10 Cal.4th 1114, 1120-1021, where the Supreme Court stated, "[i]n granting probation, courts have broad discretion to impose conditions to foster rehabilitation and to protect public safety pursuant to Penal Code section 1203.1. [Citations.] 'The court may impose and require ... [such] reasonable conditions[] as it may determine are fitting and proper to the end that justice may be done, that amends may be made to society for the breach of the law, for any injury done to any person resulting from that breach, and generally and specifically for the reformation and rehabilitation of the probationer.' (Pen.Code, § 1203.1, subd. (j).) The trial court's discretion, although broad, nevertheless is not without limits: a condition of probation must serve a purpose specified in the statute. In addition, we have interpreted Penal Code section 1203.1 to require that probation conditions which regulate conduct 'not itself criminal' be 'reasonably related to the crime of which the defendant was convicted or to future criminality.'"

Leys contends that "[t]he ORAP proceeding had absolutely no relationship to the contempt trial and/or the July 7, 2025 sentencing. In fact, any violation of ORAP was never mentioned in the lengthy trial and/or the sentencing brief prepared by the plaintiff nor the Court when she sentenced Mr. Leys. As a result, there is no correlation between the ORAP and the twenty-three (23) counts of contempt that Mr. Leys was convicted of and sentenced. There is no notice to Mr. Leys that his probation would be violated if he did not comply with the ORAP. This by itself would defeat any probation violation attempt." (Opp., 4:17-24.) Moreover, Leys asserts that "the Contempt proceeding dealt with one issue and one issue only- the posting and reposting of prohibited stalking material," and Leys complied with the Court's Order in the Contempt

Judgment. (Opp., 4:25-26.) Leys asserts that “[i]n the criminal arena, the term obey all rules and orders of the Court relate to the criminal acts the defendant was convicted of.” (Opp., 5:5-6.)

Leys also discusses the email, stating that he “is pro se in the ongoing civil case against David Mazor et al. The email was very lengthy and dealt with procedural issues with the civil case and proof of service issues. Ms. Mazor is also listed as attorney of record on the civil case with Mr. Lindborg. Also, Ms. Mazor is the only attorney that speaks in Court and argues the civil case in Court. It appears that this email was between representatives from both sides and those four words were not directed at any protected person.” (Opp., 5:10-17.)

In response, Plaintiff includes a supplemental declaration by Irina J. Mazor, Plaintiff’s spouse. (Mazor Decl., ¶ 2.) She attests that “the evidence leading to the Final Judgment showed that Leys often lashed out at me and my law firm because I am one of Plaintiff’s lawyers,” which “[t]he Court was clearly aware of these facts prior to entering the Final Judgment, as evidenced by the Court’s own insertion of my firm, Lindborg & Mazor LLP, among those and that which is protected under the express terms of the Final Judgment.” (Mazor Decl., ¶¶ 3-4.) Irina Mazor explains that she read Leys’ email and “was greatly disturbed both by the fact of the direct contact and by the content of the Email, which clearly shows the intensity of Leys’ anger. The content of probationer’s emails show they are intended to harass, rather than to serve any legitimate purpose in furtherance of the litigation.” (Mazor Decl., ¶ 7.)

The email sent by Leys states, inter alia, that “[a]lthough, I’m restricted from publicly speaking about it by an illegal order violating my First Amendment rights, there is nothing that says that I cannot continue to dig into David’s business and privately report that to the right people. Wars don’t end, they just go underground. I hope you find comfort that trying to shut me up was worth \$440k in lost billable hours. Hopefully your accountant can help you write that off somehow. As you are fraudsters and grifters, that should be cold comfort for you.” (Lindborg Decl., Ex. 1.) Although Leys contends the email is for the purposes of litigation, the excerpt above cannot be said to do anything in the furtherance of litigation; it appears to have been written with the intent to harass. Leys’ email directly violates the terms of the August 24, 2021 Judgment to not contact, inter alia, the immediate family of Plaintiff and Lindborg & Mazor LLP. Leys’ contempt hearing occurred due to various violations of the Judgment. Accordingly, contacting Irina Mazor disobeys the Court’s Order

and is directly connected to the Contempt Judgment, because Leys is engaging in prohibited behavior. Thus, this is sufficient to violate Leys' probation.

Plaintiff's reply also discusses Leys' violations of the Court's orders in relation to Lent. Plaintiff notes

that under Penal Code section 166, subdivision (a)(4), contempt of court is a misdemeanor, and "a misdemeanor is punishable by imprisonment in the county jail..." (Pen. Code, § 19.)

Plaintiff asserts that "the evidence admitted at the Contempt Trial established that Contemnor Leys engaged in a pattern and practice of repeatedly and willfully disobeying this Court's Final Judgment and the injunctive orders contained therein in violation of Code of Civ. Proc. § 1209(a)(5) and convicted of a misdemeanor criminal offense. (Undisputed Facts, No. 4). As such, the Court's condition of probation that Contemnor Leys 'obey all laws and orders of the Court' is obviously reasonably related to: (1) the crime of contempt of which he was convicted, (2) conduct which is itself criminal given that contempt constitutes a misdemeanor, and (3) future criminality in furtherance of the Court's goal to ensure that Contemnor Leys would cease engaging in contumacious conduct, acting both as a deterrent to future attempts to evade his legal duties and as a rehabilitative measure tailored to correct the behavior leading to his conviction. (Id.). Thus, even assuming Lent applies to this civil Contempt Proceeding, all Lent factors are satisfied." (Reply, 2:12-24. (emphasis in original).)

Additionally, Plaintiff contends that Leys' belief that "the Court's clearly stated term of probation requiring Leys to 'obey all laws and orders of the court' does not really mean what the words plainly state ... [is] entirely devoid of merit." (Reply, 5:18-22.) Instead, Plaintiff contends that the "plain meaning rule pertaining to statutory interpretation [should] appl[y] equally to the interpretation of this Court's plainly written words in the Contempt Judgment," and "[t]hus, there could be no doubt that this Court meant exactly what it said when it imposed upon Contemnor Leys an obligation to obey all laws and orders of the Court as a condition of his probation." (Reply, 6:15-20.)

Plaintiff also asserts that "[t]here could be no doubt that the Court's condition of probation that Contemnor Leys abides by all laws and orders of the Court also obviously encompasses the Final Judgment given that this is the very judgment that this Court found Contemnor Leys guilty of violating, thus leading to the contempt conviction." (Reply, 13:8-12 [emphasis omitted].) Moreover,

Plaintiff contends that “while Contemnor Leys insists that his violations of the ORAP and the Final Judgment should not constitute violations of his probation, he does not deny having violated both.” (Reply, 14:10-11.)

As Plaintiff points out, the parties stipulated facts for the probation revocation evidentiary hearing include that fact that Leys “refus[ed] to produce unredacted documents covered by the Court’s previous orders and he [] shredded documents.” (Stip. Facts, ¶ 5.) As well as Leys admits to sending the “email to Irina Mazor which is attached as Exhibit 1 to the Declaration of Peter Lindborg filed in support of the ex parte Application for Order Modifying or Revoking the Probation of Contemnor Leys.” (Stip. Facts, ¶ 6.)

The foregoing facts and assertions set forth by Plaintiff demonstrate that Leys may be in violation of his probation. The terms of the Contempt Judgment to “[o]bey all laws and orders of the Court” extend to the orders by the Court to enforce the ORAP, because this is directly related to and tied to the Judgment. Without the Court’s initial Judgment against Leys, the Contempt Judgment could not have arisen because it is predicated on the twenty-three violations Leys made relating to the Judgment. Moreover, Leys emailed Irina Mazor, Plaintiff’s wife and a Protected Person, which is in direct violation of the Judgment’s orders. This is significantly similar to the Contempt Judgment because, e.g., count 23 stated that “Defendant WILLIAM M. LEYS Impermissibly Tweeted Concerning the Protected Persons and the Protected Material Post Judgment.” (RJN, Ex. B, Contempt Jdg., 12:16-17.) Leys is again impermissibly contacting a Protected Person.

Under the Lent test, *supra*, the terms of Leys’ probation are invalid only if all three elements are met. (See 15 Cal.3d at p. 486 [finding that probation is invalid if it (1) has no relationship to the convicted crime; (2) “relates to conduct which is not in itself criminal;” (3) requires or forbids conduct not reasonably related to future criminality].) However, none of the factors appear to be met here. First, needing to follow the Court’s orders for the ORAP hearings and not contacting Irina Mazor directly relates to the Contempt Judgment against Leys because they arise from the Judgment. Second, the conduct it relates to is criminal because Leys’ failure to follow the Court’s orders is a misdemeanor under Penal Code section 166, subdivision (a)(4). Third, the condition of probation to obey the Court’s orders is reasonably related to future criminality, because requiring Leys to obey the Court’s orders and not harass Protected Persons is part of an ongoing effort to ensure that Leys does not engage in conduct that violates the law. Although Leys contends that the violations Plaintiff complains of are not analogous to the Contempt Judgment,

Leys is attempting to significantly narrow the scope of the Court's order to obey all laws and orders, without providing supporting authority.

Not only did the Court impose conditions on Leys' probation in the Contempt Judgment, which he may have violated, but Penal Code section 1203.3, subdivision (a), vests "[t]he court [with] the authority at any time during the term of probation to revoke, modify, or change its order of suspension of imposition or execution of sentence." Accordingly, the Court finds it necessary to hold a probation evidentiary hearing.

B.

Court-Ordered Counseling

Plaintiff also requests that the Court "order Contemnor Leys to counseling in accordance with Penal Code §646.9, the criminal stalking statute," which Plaintiff contends is "[v]irtually identical to Civil Code §1708.7, the statute pursuant to which the Court entered judgment against Contemnor Leys for stalking the Plaintiff and Plaintiff's family." (Memo., 3:13-15.)

Penal Code section 646.9, subdivision (j) provides that "[i]f probation is granted, or the execution or imposition of a sentence is suspended, for any person convicted under this section, it shall be a condition of probation that the person participate in counseling, as designated by the court. However, the court, upon a showing of good cause, may find that the counseling requirement shall not be imposed." Plaintiff contends that "Leys is an obvious candidate for counseling" because, after stalking Plaintiff for decades, completely undeterred by the pendency of the Contempt Proceeding herein," counseling "would presumably help to reform and rehabilitate him in furtherance of the general guidelines of probation." (Memo., 3:18-21.)

Leys does not address Plaintiff's request for counseling in his opposing papers because the Court only requested that Leys address "whether the alleged conduct can constitute a violation of contempt judgment and serve as a basis for revoking probation." (Minute Order 5/13/26, p. 1.) Additionally, the statute concerns mandating counseling when a convicted stalker is placed on probation rather than being sent to jail. The Court finds this issue not yet ripe, as it must first hold a hearing on the instant matter so that Leys may prove or disprove the violations.

Conclusion

Based

on the foregoing, the Court finds that Leys' alleged conduct may legally constitute a violation of the Contempt Judgment and serve as a basis for revoking probation. The Court finds a probation revocation evidentiary hearing necessary.

At the

hearing, the Court will determine whether Leys is in violation of his probation and what remediation actions are necessary. "In conducting a probation revocation hearing, a trial court exercises its discretion to 'revoke and terminate the supervision of the person if the interests of justice so require and the court, in its judgment, has reason to believe from the report of the probation or parole officer or otherwise that the person has violated any of the conditions of their supervision, or has subsequently committed other offenses, regardless of whether the person has been prosecuted for those offenses.'" (Pen. Code, § 1203.2, subd. (a).)

The facts supporting a probation revocation must be proved by a preponderance of the evidence." ((People v. Gray (2023) 15 Cal.5th 152, 163.)

Plaintiff

is ordered to give notice of this Order.

DATED: July 9, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court

[1] The Judgment was signed on August 23, 2021 and filed on August 24, 2021.